

IMAGINATION

STORIES OF SCIENCE AND FANTASY

AUGUST, 1953

35¢

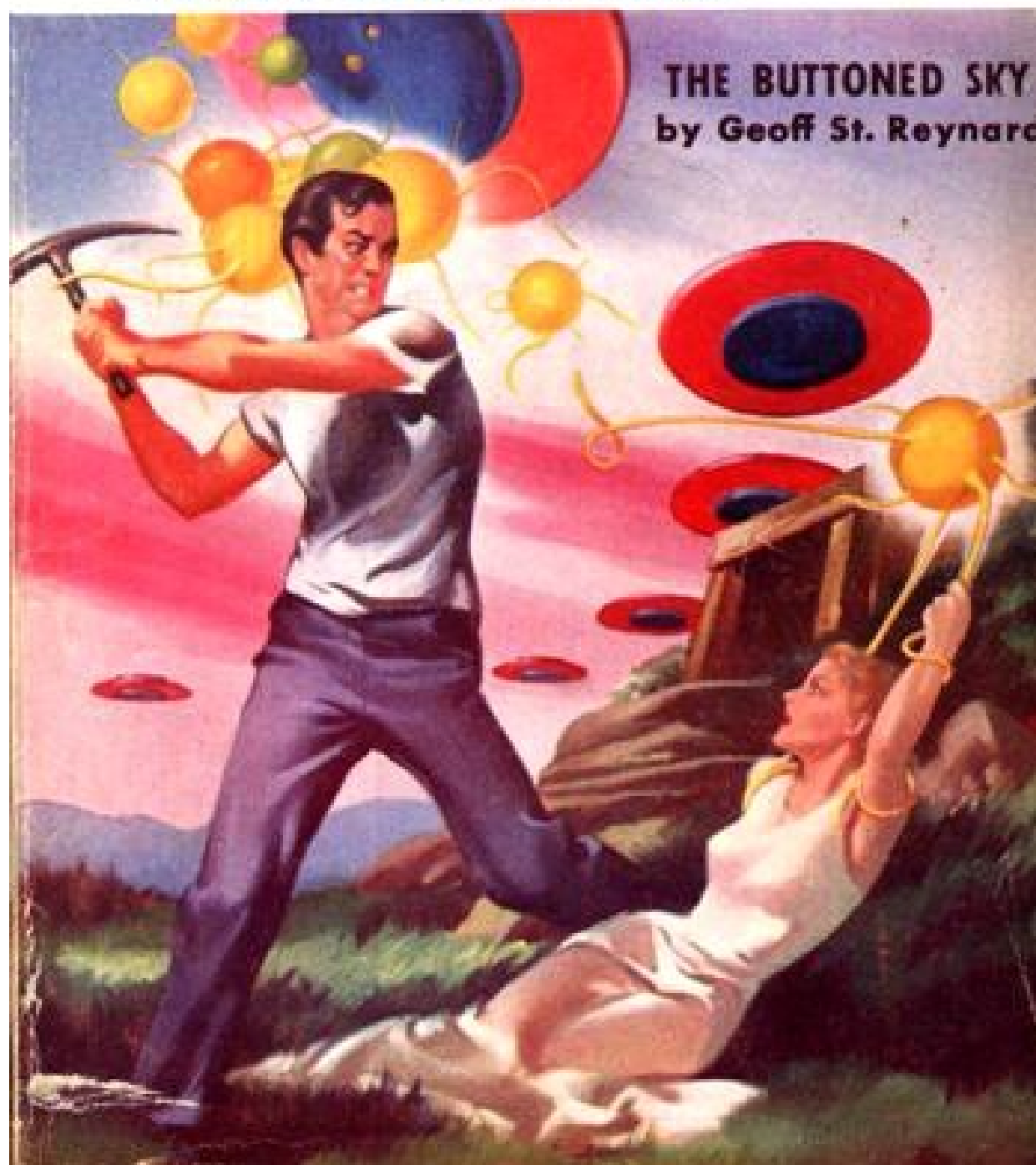
THE BUTTONED SKY
by Geoff St. Reynard



49¢
IMAGINATION
STORIES OF SCIENCE AND FANTASY

AUGUST, 1953

35¢



The Project Gutenberg eBook of The Prophetic Camera

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Prophetic Camera

Author: John McGreevey

Release date: May 14, 2010 [eBook #32361]

Language: English

Other information and formats: www.gutenberg.org/ebooks/32361

Credits: Produced by Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE PROPHETIC
CAMERA ***

THE PROPHEPIC CAMERA

By
John Mc Greevey



THE PROPHEPIC CAMERA

By John McGreevey

[Transcriber Note: This etext was produced from Imagination Stories of Science and Fantasy August 1953. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed.]

Joey Barrett set his camera carefully to one side and swung onto the edge of the desk. He knew this annoyed Nugent, and, at the moment, nothing gave him greater satisfaction than his ability to irritate the editor.

Joey knew the old man had somehow faked his pictures; after all, nobody could photograph the future. But then the future began to happen!

His heels thunked against the highly polished sides of the desk, and he shook his head very deliberately, in rhythm with the heel-hammering.

"No," he said. "I don't think so, Nugent." He decided the drumming had lost its impact, so, he crossed his legs and turned to face the balding man behind the desk. "Why should I? This assignment's out of my line and you know it."

Nugent nodded. "I know. But this is an unusual story, Joey, and I'd like to get a photographer's slant on it."

"Want to find out how the other half thinks, huh?"

Nugent referred to a memo. "This is the address." He pushed the slip of paper toward Joey. "I think you'll find this Jason Ewing most cooperative."

"He's a crackpot." Joey shied away from the memo and slid off the desk. "That's why none of your brainy reporters will touch the assignment."

"He's eccentric." Nugent didn't bother to hide his impatience. "What inventor isn't?"

"He's an inventor?"

"New kind of camera. That's where you come in, Joey." Nugent leaned back in his swivel chair. "I want a photographer's reactions to it."

"What's so special about his camera?"

Nugent didn't look at Joey. "It photographs another dimension."

There was a moment's silence. Nugent was abruptly preoccupied with his hands. Joey moved slowly toward the desk.

"Another dimension! You mean stereoptican stuff? With depth?"

Nugent stood. "No. I don't think that's what Ewing means." He moved from his desk to the window. "I want you to find out what it is. Get all the information you can."

"Are you sure this doesn't belong on the comic page, Nugent?"

Dusk was settling over the city. Nugent stared out at the darkening skyline. "I admit it sounds crazy. But, it'll make a good human interest yarn." He turned back to Joey. "Just bring in the facts and one of the re-write boys will put them in shape."

Joey Barrett's chin set doggedly. "You've got no right to ask me to...."

But he didn't finish. His editor had abruptly moved in very close. "You're in no position to quibble, Joey."

"What does that mean?"

Nugent's thin lips were tightly compressed. "The management's not happy with you." Joey's laugh was brittle. Nugent walked slowly back to his desk. "I've had more and more complaints about your work."

Joey was close behind him. "I take the assignments you hand me. And there's no one on the staff gets a sharper shot."

Nugent waved this aside. "It's your manner." He pushed a glossy eight by ten print toward the photographer. "You play up the grisly, the macabre."

Joey stared down at the picture. A slow smile narrowed his eyes. "I photograph what I see. I figure it's what your readers want to see, too."

Nugent sat heavily. "We had a hundred phone calls about that picture. Brutal ... sadistic ... morbid."

The print fell face up before Nugent. He turned it over. Joey laughed. "Sure. It's all those things. And they loved it." He leaned very close to Nugent. "You didn't have to print it."

"It was the only shot I had. It was print it or be scooped on one of the big stories of the year."

Joey's outward nonchalance failed to mask entirely his inner tension. "When I take a picture, they remember it."

"There's a difference between memorable photography and cheap sensationalism." The editor picked up the memo with Ewing's address. "All things considered," he said, "I think you'd better get this interview for me."

Joey stared at Nugent for an insolent second. Then, he took the memo. He checked the address, jammed the paper into his pocket, and moved quickly to the door. Hand on the knob, he paused.

"Oh, Nugent," he called, "if you can't see the story I bring back, just remember: it's in another dimension."

He slammed the door on Nugent's anger.

Early evening traffic was heavy as he pulled into the quiet, old-fashioned street where Ewing lived.

Sober brownstone houses, their front steps rising steeply to stain-glass paneled doors; heavily curtained bay windows; weather-stained and rotting gingerbread; an atmosphere of reluctant decay and genteel senescence. Ewing's house was like a dozen others in the same block.

Joey was not a man given to hunches, and yet, as he climbed out of his car and stood staring up at the silent house, he could not repress a shiver of apprehension.

He looked up the street. Nothing marred the quiet. A middle-aged woman hurried home with her armload of groceries. A man paraded an ancient dog on a leash.

Slowly, Joey climbed the steps. His apprehension was no more than the resentment he felt for the assignment. He yanked the old-fashioned bell and listened for its echoes dying deep in the house.

He fidgeted impatiently. Perhaps old Ewing wasn't at home. Or, maybe he was so eccentric he no longer answered the bell. Joey jerked it again.

On the traffic-noisy boulevard a block away, he heard a raw squealing of brakes.

Joey sighed and turned away. He'd wasted an hour. He started down the steps. And the door opened.

Jason Ewing was very old. His incredibly blue eyes seemed alien in the yellow parchment face. His clothing, his manner, even his speech were archaic.

As Joey shook the bony hand, Ewing was apologizing for the delay.

"I was in my dark-room," he said—the voice strangely resonant to come from so frail a chest—"and I had to get the developer off my hands."

Joey nodded and stepped inside. The atmosphere of the house was a curious mixture of chemical and decay. There was a layer of dust on the bric-a-brac, and as Joey followed the stooped figure from the entry-hall into the living-room, he saw Ewing as a kind of insubstantial ghost, moving through the deserted rooms so carefully that the dust was not disturbed.

Ewing gestured to a chair which looked prim and uncomfortable in its yellowed antimacassars. "Sit down, please, Mr. Barrett." He switched on an ornate table lamp. "It's most kind of you to be interested in my work."

Joey gave him the automatic smile. The room was a combination studio and parlor. A bulky, antique camera lorded it over the conventional furnishings. Its unblinking eye regarded Joey coldly.

There was a fireplace, with massive brass andirons cast to resemble griffon-heads; purple draperies at the window were faded by sun and time; the heavy furniture was defiantly shabby; even the antique photograph album with its plush cover and gold-plated clasp and lock was right for the room. This was Jason Ewing's world and Joey felt himself to be an alien.

Ewing hovered nervously, white fingers clenching and unclenching, reaching out, now and then, to touch the album on the dusty table-top. "I know you are a busy man, Mr. Barrett," he said, "so I'll come at once to the point."

Joey relaxed as much as he could in the old chair. "I should tell you first, Mr. Ewing, that I'm not a writer. I'm a photographer. My editor thought maybe you and me would talk the same language."

Ewing bobbed his head up and down. "Excellent. Excellent." He pulled up a small chair. "Believe me, Mr. Barrett, I hesitated a very long while before I decided to make my discovery public."

Joey disguised a grin. "What finally decided you?"

Ewing closed his eyes. "I'm not well. Heart. Most unreliable. Doctor tells me I may ... may die ... at any time."

"I see."

"But, before I die," the old man said, leaning forward again, "I must share my secret." He seemed to have difficulty in finding the words he sought. "It's ... it's so extraordinary, Mr. Barrett, that I've been afraid to divulge it." He gave a sad shake of his head. "People today are so unwilling to accept the unusual."

Joey writhed inwardly. This was worse than he had thought. He would make Nugent pay. "Mr. Nugent said something about your photographing another dimension," he prompted.

The old man pushed himself to his feet. "It was accidental. I've dabbled in amateur photography for years." He limped over to his camera. "Not only

took pictures—developed my own." He paused and looked very directly at Joey. "About six years ago, I began experimenting with a new developer."

Ewing's eyes were disturbing. Joey looked away. "You had used commercial developers before?"

"Yes." Ewing gripped the camera. "I wanted a developer that would give a more sharply defined image. I tried fifty different formulae—never quite achieving what I had in mind."

Joey lit a cigarette. "You must have spent a lot of time on it."

"I had retired. I live alone here. No other interests." The phrases came in little gasps, as if Ewing had to force the words between his lips. "Made no progress. And then, I tried Formula #53."

The pause indicated Joey was expected to react. "Formula #53?"

Ewing moved back to the light. "My fifty-third experiment. Radical departure from commercial developers."

"It succeeded?"

"It succeeded, Mr. Barrett, but not in the way I had imagined." The fish-white hands rested on the photo album. "I developed some film in Formula #53 and received the shock of my life." His voice was a whisper. "The pictures on the negative were NOT the pictures I had taken."

He paused to watch the effect on Barrett. Joey scratched his ear. "You took one set of pictures and the negatives you got were of another set?"

"I know what you're thinking," Ewing said. "What I thought at first: that I'd gotten hold of the wrong film. But that wasn't the answer. The same thing happened again and again. Whenever I used Formula #53 as my developer, I produced a strange set of pictures."

Joey stood up nervously. The old boy was crazier than he had first guessed. Humoring him seemed the only answer. "That's incredible."

Ewing nodded excitedly. "I thought I was losing my mind. But, slowly, I began to realize what had happened."

"What?"

The old man sank into the chair by the table. "School of modern philosophers ... teaches all time is co-existent."

Joey felt almost sorry for the old boy. He was so much in earnest about his crack-brained discovery. "Time ... co-existent?"

"Past, present, future—all simultaneous. Running along in parallel dimensions."

Joey tried a laugh. "Little rough for me, Mr. Ewing," he apologized. "Look," he went on quickly, "I've been thinking...."

But Ewing wasn't listening. "Simplify it. At this moment, Caesar crossing the Rubicon; Columbus is discovering America; you and I are talking; a man in the twenty-fifth century is rocketing toward Mars."

"I see what you mean."

Ewing was holding the old fashioned photo album in his lap. "Well, I know now that what I've stumbled into with Formula #53 is another dimension in time."

"You mean that ... that you can take a picture of what's happening in another time?"

Ewing nodded. "I know it's difficult to grasp, Mr. Barrett." He held out the plush-covered album. "But I have proof."

Joey stepped toward the old man. "You've got pictures in there—pictures of this other dimension?"

"Yes." He fumbled in his vest pocket, found a small key, and with trembling hand inserted it in the album lock. "I've never shown anyone these pictures before," he said.

Despite himself, Joey felt excited. Even as he dismissed Ewing as a hopeless crackpot, he was disturbingly eager to see the pictures in the old album.

Ewing gestured for him to be seated. Joey sat in the chair near the table and the old man handed him the open album.

"So far," Ewing said, "I haven't been able to control the process. I photograph a subject and the picture may be projected ten years into the future or a hundred years into the past. There must be an infinite number of dimensions registered on the film, but my developer varies."

Joey's initial eagerness was quickly dissipated. The photographs in the album were disappointingly ordinary. True, there were some that seemed to be trick-shots and a few in which the costuming was unfamiliar, but certainly nothing to document the old boy's claim. Aside from a few shots that were interesting because of their violence, there was nothing in the album.

Ewing waited for Joey's reaction—the parchment face even more deeply wrinkled by excitement—the blue eyes blazing.

"Well, Mr. Barrett?"

Joey left the album open at the picture of a gruesome accident. Apparently, two cars had met head-on. The one had been a sleek convertible. The other was an old sedan. Both were terribly crumpled. Glass littered the street. Steam spewed from the twisted radiator of the old wreck.

A man sprawled from the front seat of the sedan—an elderly man, with a white beard—a beard spattered with blood. His sightless eyes stared accusingly at the small cluster of onlookers who surrounded the wreck. Nearby, thrown from the crushed convertible by the impact, lay a woman. She wore an extreme evening dress, and a fur cape had fallen not far from her body. All around her were pearls ... spilled from the broken strand at her throat.

Joey looked up at Ewing. He shook his head. "You've got some interesting pictures, but I can't see that they prove your theory. They could have been taken any time." He pointed to the photo of the wreck. "This one, for instance." He smiled up at the old man. "That looks like a shot I might have made."

Ewing's entire body seemed shaken by his eagerness to prove his point. "Mr. Barrett ... that picture is of an accident that hasn't occurred. One evening, I

took a picture of the street out there ... at the corner ... where our street joins the Boulevard." His voice was low, urgent. "When I snapped that photo, the street was deserted. There were no cars—no people."

Joey took another look at the wreck. He closed the album with finality. "Mr. Ewing," he said, "I'm not questioning your sincerity. I can see that you're convinced your developer has extraordinary powers."

"But you don't believe me." There was despair in the old man's voice. "What can I say to make you believe that you've just looked at the picture of an accident that's yet to happen."

Joey laid the album on the table. "It's an interesting theory."

Ewing moved to his camera. "It's more than a theory. I can prove it." He ducked behind the camera. "Let me take your picture, Mr. Barrett, and I'll prove it."

"Wait a minute!" Joey half rose from the chair in protest, and then, with a shrug subsided. "Sure," he said. "Why not?"

"Thank you," Ewing answered. He focused the camera, cut on extra lights, posed Joey, took his picture.

The ordeal over, Joey moved toward the door.

"You'll see, Mr. Barrett. This picture will convince you."

Joey nodded. "Sure, sure. You give me a call."

They were in the entry-hall. "As I said," Ewing continued, "I haven't much time. That's why I'm very anxious to pass on my discovery. It could do great good—in the right hands."

Joey opened the door. "I understand," he said. "You give me a call."

"I will."

Joey was outside—the door between him and Ewing's pathetic eagerness. As he bounded down the steps, he was devising a revenge extreme enough for Nugent.

He slipped in behind the wheel. It was surprising that anyone as near psycho as Ewing should be loose. The old boy had lived too long alone in the empty house.

Just as he drew away from the curb, Joey heard the crash. Squealing rubber, splintering glass, rending metal, perhaps a human scream ... compounded into an awful discord that ricocheted against the quiet brownstone fronts, building to a crescendo of metallic anguish.

After the first moment of surprise, Joey experienced the curious exaltation he always felt at a scene of violence. The trip wasn't a waste after all. He'd get a picture, and from the sound of the crash, it would be a good one.

As he clambered out of his car, camera ready, people were running down steps, cars were swinging off the boulevard—the first cluster of the curious was collecting.

With professional assurance, Joey brushed people aside and moved in. One car had been stopped at the intersection and the other had careened off the boulevard and smashed head-on into it.

Joey stopped on the crowd's inner edge and stared.

It was impossible. One car was an old sedan. The other, a sleek convertible. An old man with blood-spattered white beard half-spilled from the sedan and on the glistening pavement lay a woman in evening dress, surrounded by dozens of pearls.

From habit, Joey took the picture of the accident and delivered it to Nugent. By the time he had developed his picture, he was beginning to enjoy the knowledge that it was an exact duplicate of the photograph in Ewing's album.

Only he and Ewing realized the power of Formula #53. It couldn't be coincidence. The details were too exact. Ewing's explanation was the only one possible. And that meant the old boy wasn't crazy. The formula was all he insisted.

Such a formula could be a great force for good, the old man had said. In the right hands. In the hands of Joey Barrett.

Joey decided to keep his secret. This was not a power to be shared with Leslie Nugent or anyone else. So, when he faced his editor again, he was careful to dismiss the Ewing interview with just the proper degree of casualness.

"There's no doubt about it," he said. "Ewing's a crackpot."

Nugent scowled impatiently. "Even so...."

"I tell you, if we run the story he gave me, we'll be laughed out of business." Joey watched Nugent closely.

"But surely as a human interest yarn," the editor protested, "we'd be justified."

Joey shook his head. "He's an old crank, trying to build up his ego with these phony claims."

Nugent leaned back. "There was absolutely no basis for his theory?"

"None." Joey laughed easily. "You should have seen the obvious trick photos he tried to pass off as evidence. My advice is: forget Jason Ewing."

There was a long pause. Then, Nugent nodded. "All right. Thanks, Joey." He picked up a glossy of the accident. "You outdid yourself on this one."

Joey sauntered to the door. "The master's touch," he called. "I'll hit you for a raise later."

Satisfied that Nugent considered the Ewing story dead, Joey left the paper and hurried to a pay-phone.

When Jason Ewing answered, there was a note of near-hysteria in his voice. He seemed frightened by Joey's interest and was extremely reluctant to give

him another interview.

"I don't blame you for being irritated," Joey said. "I was very rude. But look, Mr. Ewing, now I see I was wrong. We can't talk about it on the phone. All I want is a chance to see you again. Maybe tomorrow?"

There was such a long pause that Joey thought Ewing had broken the connection. Then, he heard the old man sigh.

"I ... I don't know what to say," Ewing faltered. "In the light of ... of recent developments, I think it would be unwise to involve you, Mr. Barrett."

Joey laughed. "Listen, this is the break of a lifetime for me. How about tomorrow morning at nine?"

"Tomorrow." The one word was neither affirmation nor question.

But Joey chose to interpret it as agreement. "See you in the morning at nine, Mr. Ewing," he said, and hung up quickly.

Joey slept little that night. He was up early, gulped a hasty breakfast, and stood on the steps at Ewing's house at five minutes to nine.

Again, as on the day before, he had to ring the bell twice before the door opened and the wrinkled face showed itself. He was shocked by the change in Ewing. The man seemed much older and there was a haunting fear in the blue eyes.

"It would have been wiser," the old man whispered, "if you had not come here again—for us not to have met."

Joey was determined to be charming. He put his hand on the thin old arm and gently pushed Ewing into the entry hall. "I don't blame you for being bitter," he said, closing the door. "I was a fool yesterday."

Ewing pulled free and moved agitatedly into the living-room. Even the morning sun made no impression on the shadows there.

The old man didn't look at Joey. "You were right," he said. "It would be better to forget the formula."

Joey fought down his impatience. He tried to move smoothly, keep his voice calm. "No. You mustn't think that. You can't be selfish. You said yourself, Mr. Ewing, that this knowledge could do great good."

The quiet persuasiveness of Joey's approach seemed cause for further alarm. "I said that, but since then ... I ... I see that it might also do great harm."

He tottered away from Joey and slumped tiredly into the chair by the table.

"Mr. Ewing," Joey said, following him, "yesterday I saw one of your pictures come to life."

Ewing did not look up. "I know. The accident at the corner. I was afraid you had seen it."

"Afraid!" Joey laughed. "That was the clincher." He leaned over the old man. "Listen, Mr. Ewing, the second I saw that wreck, I realized what we have in Formula #53. I want to help you make use of it—the proper use."

The old man shook his head. "I'm afraid," he whimpered.

Joey ignored the interruption. "We'll work this together. If we play it smart, the sky's the limit. We can be millionaires. Name our own prices." He laughed in his excitement. "They'll meet our demands when they see what we've got to offer."

Ewing had slowly pushed himself to his feet. He regarded Joey with mixed apprehension and disgust. "You ... you can't commercialize my discovery," he protested. "I wouldn't permit the formula to be used for personal gain."

"Not just MY gain. You and me together." Joey looked at the red-plush photo album and rubbed his hands. "I'll bet we got pictures in that album worth a hundred grand."

Abruptly, Ewing stepped past Joey and seized the album. He cradled it in his arms. "That's out of the question." He tottered toward the fireplace. "Mr. Barrett," he pleaded, "I beg you to go now."

Anger simmered in Joey—anger and frustration. "All right," he said, forcing himself to be reasonable. "Those are your pictures." He faced Ewing at the fireplace. "But if I take some, will you give me the formula so I can develop them?"

Stubbornly, the old man shook his head.

"What IS the formula?" Joey demanded.

"I've never written it down." Ewing clutched the red-plush photo album with one hand and gestured imploringly with the other. "Mr. Barrett, every moment you stay here, you jeopardize us both. Leave now. Please. Forget we ever met ... that you ever heard of Formula #53."

"Forget!" Joey's hands clenched and unclenched in mounting desperation. "You can't start a guy on a thing like this, Ewing, and then tell him to forget it!" For a long second, they stared at each other. Ewing was breathing heavily and perspiration beaded the parchment face.

Joey tried another tactic: "Look ... if you don't want to give me the formula, at least let me have a few of the pictures in that album. Whatever I get out of them, I'll split with you." He reached out tentatively.

Ewing shrank back. "Go away. Let me alone. There's nothing in the album. I burned the pictures."

"You're lying!" The thought of the money the old fool had thrown away cut into Joey like a knife. "You wouldn't do a crazy thing like that."

"Only two left. Should have burned them."

Panic seized Joey. He grabbed at the red-plush album. "I don't believe you. Let me see."

Ewing held onto the book with the tenacity of an aged crab. "You mustn't," he croaked. "You're destroying yourself. Don't."

But the old man's stubborn and futile resistance stoked the smouldering fires of Joey's anger. He gripped one corner of the coveted trophy with his left hand, and with his right, gave Ewing a vicious shove.

With a rattling cry, the old man staggered back and fell with a clatter into the fireplace.

The book was in Joey's hand. He didn't look at Ewing. The clasp was not locked. Feverishly, he opened the heavy cover. The truth took his breath away. Ewing hadn't lied. The pages were empty. He had burned the pictures. The crazy old fool!

But he had said there were two pictures left. Joey thumbed hastily through the empty album till he reached the first of the remaining pictures.

He cried out.

It was a self-portrait of Ewing. He lay sprawled on the floor before the fireplace, blue eyes staring up at the ceiling, blood smearing his temple and one of the massive brass andirons.

Joey dropped the album on the table and slowly turned. He closed his eyes. "Oh, God!" he whispered. "No! No!"

Like a sleep-walker, he moved to the silent figure, knelt, searched in vain for pulse or heart-beat. There was none. Jason Ewing was dead.

Joey stared at the andiron with its tell-tale stain. He pulled himself up to a half-crouch and looked wildly around the dark living-room. The camera was an accusing eye. "It was an accident," he murmured. "His heart. He was an old man."

The photo album still lay open on the table.

Ewing had saved two pictures. One of himself. The other....

There was a heavy knocking at the front door.

Joey went shakily to the album. Gripping the table's edge, he turned to the second picture:

Joey Barrett sat in a chair. His trousers were slit. His head was shaved and there were straps and electrodes.

It was the kind of picture that would sell a thousand extra copies.

*** END OF THE PROJECT GUTENBERG EBOOK THE PROPHETIC
CAMERA ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.